

109	Quinn vs. Valley Post-Acute And Rehab LLC 2025-01518740	Motion for Summary Judgment and/or Adjudication Plaintiff Harvey Quinn moves for summary adjudication of certain affirmative defenses asserted by Defendant VPR Ops, LLC. The motion is unopposed. For the reasons set forth below, the motion is DENIED. <u>Legal Authority</u> Pursuant to C.C.P. § 437c(f)(1), a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty. C.C.P. §437c(f)(1). “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” Id. When a plaintiff moves for summary adjudication on an affirmative defense, the court shall grant the motion “only if it completely disposes” of the defense. (Code Civ. Proc., § 437c, subd. (f)(1).) The plaintiff bears the initial burden to show there is no triable issue of material fact as to the defense and that he or she is entitled to judgment on the defense as a matter of law. In so doing, the plaintiff must negate an essential element of the defense, or establish the defendant does not possess and cannot reasonably obtain evidence needed to support the defense. (See <i>Securitas Security Services USA, Inc. v. Superior Court</i>, supra, 197 Cal.App.4th at pp. 119–120, 127 Cal.Rptr.3d 883; Code Civ. Proc., § 437c, subd. (f); see also <i>Westlye v. Look Sports, Inc.</i> (1993) 17 Cal.App.4th 1715, 1726–1727, 22 Cal.Rptr.2d 781.) If the plaintiff does not make this showing, “ ‘it is unnecessary to examine the [defendant's] opposing evidence and the motion must be denied.’ ” (<i>Rehmani v. Superior Court</i> (2012) 204 Cal.App.4th 945, 950, 139 Cal.Rptr.3d 464.) “ ‘However, if the moving papers establish a prima facie showing that justifies a [ruling] in the [plaintiff's] favor, the burden then shifts to the [defendant] to make a prima facie showing of the existence of a triable material factual issue.’ ” (Ibid.) <i>See</i> <i>See's Candy Shops, Inc. v. Superior Ct.</i> (2012) 210 Cal. App. 4th 889, 899–900. A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. <i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119. “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” <i>Johnson v. United Cerebral Palsy, etc.</i> (2009) 173 Cal.App.4th 740, 754. “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” <i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.
-------------------	---	--

In ruling on a motion for summary judgment or summary adjudication, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” Aguilar v. Atlantic Richfield Co. (20021) 25 Cal.4th 826, 843. Courts “construe the moving party’s affidavits strictly, construe the opponent’s affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.” Unilab Corp. v. Angeles-IPA (2016) 244 Cal.App.4th 622, 636.

Merits

Issue 1 (Affirmative Defense No.3)

The Third Affirmative Defense asserted by defendnat VPR, Ops, LLC states “Defendants assert that, to the extent that any of the alleged wrongs were committed by others, liability for any and all such claims is barred as against these answering Defendants in their entirety.” ROA 44.

Plaintiff asserts defendant VPR Ops. LLC has conceded it does not possess and cannot obtain any admissible evidence to support this affirmative defense, and it is therefore subject to summary adjudication. SSUMF (ROA 85) Nos. 1-6. Defendant has not opposed the motion.

Plaintiff argues there is a lack of evidentiary support, as shown by defendant’s responses to Special Interrogatory Nos. 8-9, which seek the facts supporting the defense and the identification of individuals possessing information supporting the defense. SSUMF (ROA 85) Nos. 1-6. Plaintiff argues the lack of evidentiary support is further demonstrated by defendant’s response to Request for Production No. 9, which seeks documents supporting the defense. Id.

As to the interrogatories, defendant VPR Ops, LLC responded it “had no involvement in the care of the plaintiff, staffing of the facility, operation of the facility and made no decisions on behalf of the facility” and identified “David Levy, Moishe Frankel, Nathan Pease, [and] Rush Melliti” as possessing supporting information. SSUMF Nos. 1-6. As to the document request, defendant responded that “[a]ll such documents are in the possession of VPR which had sole authority and responsibility for operating decisions of the facility.” Id. Plaintiff argues these responses fail to provide facts because no “outside sources of information” are identified. ROA 87 at 2. Plaintiff does not explain the legal significance of this contention and the court is not aware of any. These responses are not devoid of facts. Furthermore, to the extent plaintiff argues defendants Valley Post-Acute and Rehab, LLC and defendant VPR, Ops, LLC should not be treated as separate entities, that has not been established. ROA 87 at 2-4.

Additionally, defendant answered the complaint on 01-21-2026. ROA 44. Plaintiff served the discovery requests discussed above on 02-25-2026 and defendant provided its responses on 06-03-2026. SSUMF (ROA 85) Nos. 1-6. This does not establish “defendant does not possess and cannot

reasonably obtain evidence needed to support the defense” sufficient to shift the burden to defendant. See’s Candy Shops, Inc. v. Superior Ct. (2012) 210 Cal. App. 4th 889, 899–900. Furthermore, the timing of the discovery does not create a logical inference that defendant cannot reasonably obtain evidence needed to support the defense. Gaggero v. Yura (2003) 108 Cal.App.4th 884, 892 (in determining whether a moving party meets its initial burden based on an absence-of-evidence theory, the court must determine whether evidence gives rise to a “logical inference of an absence of facts”); Cf. Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); see also Krantz v. BT Visual Images, L.L.C. (2001) 89 Cal. App. 4th 164, 174 (“in cases in which...discovery is incomplete, the motion for summary judgment should not be granted”). Moreover, defendant has no affirmative duty to amend or supplement its interrogatory responses or its responses to the requests for production and there is no evidence plaintiff sought updated responses.

Accordingly, plaintiff has failed to meet his initial burden to show there is no triable issue of material fact as to Affirmative Defense No. 3 and summary adjudication of Issue No. 1 is denied.

Issues 2-6 (Affirmative Defense Nos. 5, 6, 17, 18, 23)

Plaintiff asserts defendant VPR Ops. LLC has conceded it does not possess and cannot obtain any admissible evidence to support affirmative defense nos. 5 (“Waiver, Estoppel, Laches, and Unclean Hands”), 6 (“Statutes of Limitations”), 17 (“Numerosity”), 18 (“Not Similarly Situated”), 23 (“Typicality”) and the defenses are therefore subject to summary adjudication. SSUMF (ROA 85) Nos. 7-36. Defendant has not opposed the motion.

Plaintiff argues there is a lack of evidentiary support, as shown by defendant’s responses to Special Interrogatory Nos. 10-19, which seek the facts supporting the defenses and identification of individuals possessing information supporting the defenses. SSUMF (ROA 85) Nos. 7-36. Plaintiff argues the lack of evidentiary support is further demonstrated by defendant’s response to Request for Production Nos. 10-15, which seek documents supporting the defenses. Id.

For each of the affirmative defenses above, defendant VPR Ops, LLC provided the following interrogatory response: “Responding party has no facts at this time. The affirmative defenses were raised so as to preserve them for trial as facts were uncovered during the litigation.” SSUMF (ROA 85) Nos. 7-36. As to the document requests, defendant provided the following response to each: “There are no such documents at this time.” SSUMF (ROA 85) Nos. 7-36. Additionally, as to affirmative defense nos. 18 and 23, defendant added to its document request responses above the phrase “as it is uncertain what claims are attributed to the absent class members.” SSUMF (ROA 85) Nos. 30, 36.

The court finds defendant's responses above are devoid of facts. Defendant answered the complaint on 01-21-2026. ROA 44. Plaintiff served the discovery requests discussed above on 02-25-2026 and defendant provided its responses on 06-03-2026. SSUMF (ROA 85) Nos. 7-36. Plaintiff does not establish "defendant does not possess and cannot reasonably obtain evidence needed to support the defense" sufficient to shift the burden to defendant. See's Candy Shops, Inc. v. Superior Ct. (2012) 210 Cal. App. 4th 889, 899-900. Furthermore, the timing of the discovery does not create a logical inference that defendant cannot reasonably obtain evidence needed to support the defense. Gaggero v. Yura (2003) 108 Cal.App.4th 884, 892 (in determining whether a moving party meets its initial burden based on an absence-of-evidence theory, the court must determine whether evidence gives rise to a "logical inference of an absence of facts"); Cf. Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); see also Krantz v. BT Visual Images, L.L.C. (2001) 89 Cal. App. 4th 164, 174 ("in cases in which...discovery is incomplete, the motion for summary judgment should not be granted"). Moreover, defendant has no affirmative duty to amend or supplement its interrogatory responses or its responses to the requests for production and there is no evidence plaintiff sought updated responses.

Accordingly, plaintiff has failed to meet his initial burden to show there is no triable issue of material fact as to Affirmative Defense Nos. 5, 6, 17, 18, and 23, and summary adjudication of Issue Nos. 2-6 is denied.

Defendant to give notice.

TENTATIVE RULINGS

9/11/2026

10:00 AM